SYNTHETIC TRAINING RECORD

United States Court of Appeals for the Fourth Circuit

Synthetic docket: SYN-26-1427

Asterglen Freight Software, Inc., Appellant

v.

Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees

Joint Appendix

This joint appendix is a fictional training artifact. It was not filed in any court and does not identify real parties, counsel, judges, or litigation. Appendix citations use one continuous sequence, JA1 through JA47.

Table of Contents

The operative Rule 54(b) order is reproduced at JA40. Its text directs entry of judgment but does not state that there is no just reason for delay.

Appendix Conventions

The appendix preserves the synthetic district-record documents in docket order. Page references in the briefs use the printed JA number shown by this plan rather than a PDF viewer's zero-based page index. The source documents retain their own internal headings, dates, signatures, and synthetic-record notices.

The following procedural facts are fixed for the exercise:

- Count I was resolved against Asterglen, while Count II and Copper Kestrel's counterclaim remained pending.
- Asterglen requested an express Rule 54(b) determination.
- The district court granted the motion and entered a separate partial judgment, but neither operative document states that there is no just reason for delay.
- No oral findings or hearing transcript exist.
- The notice of appeal was filed on March 3, 2026.

Certification and Scope

The assembled appendix contains the portions of the synthetic record cited by the parties on appellate finality and notice timing. It omits unrelated discovery papers and merits exhibits. The omitted material is not needed to determine whether the February 4 order and partial judgment satisfy the express-determination requirement presented by this exercise.

The second, authoring-only annotation segment in the source for district entry 59 is excluded. Only the one-page operative order appears at JA40. The certified docket at JA44–JA47 identifies the remaining claims, the absence of a hearing transcript, the judgment date, and the notice date used by the parties.

Synthetic compilation statement: the page plan, record selection, captions, dates, and cross-references were checked against the source-controlled case metadata before rendering.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

COMPLAINT AND JURY DEMAND

Plaintiff Asterglen Freight Software, Inc. ("Asterglen"), by fictional counsel, alleges on knowledge as to itself and on information and belief as to others:

Nature of the action

1. Asterglen licenses BeaconRoute, a freight-routing platform. Copper Kestrel Logistics, LLC ("Copper Kestrel") bought a limited pilot license for twelve named dispatch terminals.
2. Copper Kestrel, assisted by Meridian Silt Holdings, LLC ("Meridian Silt"), deployed the platform to additional terminals after Asterglen declined a written expansion request.
3. Count I seeks contract damages from Copper Kestrel. Count II seeks damages from Meridian Silt for intentional interference with the pilot license. Asterglen demands a jury on triable issues.

Parties, jurisdiction, and venue

4. Asterglen is a Virginia corporation with its principal place of business in Richmond, Virginia.
5. Copper Kestrel is a North Carolina limited liability company. Its sole member is a natural person domiciled in North Carolina. Copper Kestrel has its principal operating office in Raleigh, North Carolina.
6. Meridian Silt is a Maryland limited liability company. Its sole member is a natural person domiciled in Maryland. Meridian Silt has its principal operating office in Baltimore, Maryland.
7. Complete diversity exists. The amount in controversy exceeds $75,000 exclusive of interest and costs. This Court has subject-matter jurisdiction under 28 U.S.C. § 1332(a).
8. Venue is alleged to be proper in this district because the contract identifies Richmond as the service location, Asterglen provisioned access here, and a substantial part of the alleged events occurred here. Defendants reserve all responses.

The pilot license

9. Asterglen and Copper Kestrel executed the Pilot License on April 15, 2024. A true synthetic copy was attached to the complaint as Exhibit A in this authored record but is not separately included in the training appendix.
10. Section 3.1 permitted use at twelve dispatch terminals identified on Schedule 1. Section 3.4 required a signed change order before adding a terminal.

11. Section 9.2 stated: "Before either party terminates this Agreement for material breach or seeks breach damages, that party must give written notice describing the breach and allow fifteen calendar days to cure."
12. Section 11.3 stated that amendments and waivers must be in a writing signed by both parties.
13. The pilot term ran from April 15 through October 15, 2024. The license fee was $12,000 per named terminal. A change order would use the same per-terminal fee unless the parties agreed otherwise.

Expansion request and deployment

14. On June 3, 2024, Copper Kestrel emailed a proposed change order for twenty-nine additional terminals.
15. On June 10, 2024, Asterglen responded that it could not approve expansion until completion of a load test. No signed change order followed.
16. On July 1, 2024, Copper Kestrel used a staging credential to deploy BeaconRoute at the twenty-nine additional terminals, for forty-one total terminals.
17. Meridian Silt provided integration services for the scale-out. Its project log quoted Section 3.4 and recorded that "Asterglen has not signed the expansion paper."
18. On July 8, 2024, personnel for all three companies held a video call. Asterglen's project manager said the load appeared stable but lacked authority to amend the agreement. No signed writing resulted.

19. Asterglen's July 18 audit detected forty-one active terminal identifiers.
20. On July 22, 2024, Asterglen disabled Copper Kestrel's staging credential and sent an email stating that the expanded deployment was unauthorized and that the pilot was terminated immediately.
21. The July 22 email demanded $348,000 in additional license fees and $132,000 in response costs. It did not offer a fifteen-day cure period.
22. Copper Kestrel disputed termination and asserted that the July 8 call authorized expansion. It did not pay Asterglen's demand.
23. Meridian Silt continued migration work for three days after the credential was disabled, using configuration files already delivered to Copper Kestrel.

Count I — breach of contract against Copper Kestrel

24. Asterglen repeats paragraphs 1–23.
25. The Pilot License was a valid contract. Asterglen alleges it performed its obligations until the July 22 termination.
26. Copper Kestrel allegedly breached Sections 3.1 and 3.4 by deploying the software beyond the twelve named terminals without a signed change order.
27. Asterglen alleges direct damages of $348,000 and consequential response costs of $132,000, for a total of $480,000, subject to proof.

28. Asterglen alleges that Copper Kestrel repudiated the agreement by refusing to pay for the additional deployments.
29. Asterglen seeks judgment against Copper Kestrel for $480,000, pre- and post-judgment interest as permitted by law, and taxable costs.

Count II — intentional interference against Meridian Silt

30. Asterglen repeats paragraphs 1–23.
31. Meridian Silt knew of the Pilot License and its signed-change-order requirement. Its own project log quoted Section 3.4.
32. Asterglen alleges Meridian Silt intentionally encouraged and implemented expanded use despite that knowledge.
33. Asterglen alleges Meridian Silt used improper means by directing Copper Kestrel to reuse a staging credential intended for testing rather than production.
34. Asterglen alleges Meridian Silt's conduct caused Copper Kestrel's nonperformance and caused Asterglen to spend $132,000 on containment and forensic review.
35. Asterglen seeks $360,000 in compensatory damages from Meridian Silt, avoiding duplicate recovery of any amount awarded on Count I, plus interest and taxable costs.

Requested relief

Asterglen requests that the Court:

A. enter judgment against Copper Kestrel on Count I for $480,000, subject to proof;

B. enter judgment against Meridian Silt on Count II for $360,000, subject to proof and without duplicate recovery;

C. award lawful pre- and post-judgment interest and taxable costs;

D. grant other relief proved and legally available; and

E. set triable factual disputes for jury trial.

Jury demand

Asterglen demands a jury trial on all issues so triable.

Respectfully submitted on March 3, 2025.

ASTERGLEN FREIGHT SOFTWARE, INC.

By fictional counsel for this synthetic exercise only:

/s/ Morgan Example

Morgan Example (fictional) Example Advocacy Studio 100 Training Square Richmond, Virginia 23219 synthetic-counsel (at) example.invalid

No person or firm named on this page is real or appearing in any court.

Certificate of service

This synthetic certificate states that on March 3, 2025, the authored complaint was served with synthetic process by the exercise's assumed method. It is not evidence of real service.

/s/ Morgan Example

Exhibit A index (synthetic; exhibit not reproduced)

Pilot License dated April 15, 2024:

- Section 3.1: twelve named terminals.
- Section 3.4: signed change order required before expansion.
- Section 9.2: written notice and fifteen-calendar-day cure before termination or breach damages.
- Section 11.3: signed writing required for amendments and waivers.
- Schedule 1: twelve fictional terminal identifiers.

The complete fictional agreement is intentionally omitted because the appeal turns on the text quoted in the pleadings and the district order, not on an unanchored extra-record asset.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

DEFENDANTS' ANSWER, AFFIRMATIVE DEFENSES, AND COPPER KESTREL'S COUNTERCLAIM

Defendants answer the numbered allegations as follows. Any allegation not expressly admitted is denied.

1. Admit Asterglen licenses a platform called BeaconRoute. Admit the original schedule named twelve terminals. Deny the remaining characterization.
2. Admit Meridian Silt provided integration services. Deny that any deployment was unauthorized after the July 8 call.
3. Admit Counts I and II request the stated categories of relief. Deny entitlement.

4–6. Admit the alleged forms, principal places of business, and citizenship solely for this synthetic case.

7. Admit subject-matter jurisdiction is alleged under 28 U.S.C. § 1332(a) and do not presently contest complete diversity or amount in controversy.
8. Admit venue for this exercise only.

9–13. Admit execution, date, term, fee, and the quoted text of Sections 3.1, 3.4, 9.2, and 11.3. Defendants state that the entire agreement controls.

14–15. Admit Copper Kestrel requested expansion on June 3 and Asterglen did not sign the proposed change order on June 10.

16. Admit BeaconRoute was configured for forty-one terminal identifiers by July 1. Deny that all identifiers represented simultaneous production use.
17. Admit Meridian Silt's project log contains the quoted sentence. Deny the log admits unlawful conduct.
18. Admit a July 8 video call occurred. Defendants state Asterglen's project manager said, "Continue while we finish the paperwork." Asterglen disputes those words and the manager's authority.

19. Admit Asterglen reviewed an audit on July 18. Lack knowledge about the audit's completeness.

20–22. Admit Asterglen disabled the credential and sent an immediate-termination email on July 22; admit the email demanded $480,000 and did not provide fifteen days to cure; admit Copper Kestrel disputed termination and did not pay. Deny that payment was due.

23. Admit Meridian Silt performed limited migration work through July 25 using configuration files already delivered. Deny that the work accessed Asterglen systems after July 22.

24. No response is required to incorporation; otherwise denied.

25. Admit a valid contract. Deny Asterglen performed, because it disabled access without the contractually required written notice and cure period.

26–29. Deny breach, damages, repudiation, and entitlement to relief.

30. No response is required to incorporation; otherwise denied.

31. Admit Meridian Silt knew a written agreement existed and its log quoted Section 3.4. Deny knowledge of any uncured breach.

32–35. Deny intentional interference, improper means, causation, damages, and entitlement.

Affirmative defenses

First defense — failure of condition precedent. Section 9.2 required written notice and fifteen calendar days to cure before either termination or breach damages. Asterglen demanded damages and terminated immediately without allowing cure.

Second defense — waiver and estoppel. Defendants allege Asterglen directed continued work on July 8, while acknowledging that the signed paperwork remained incomplete. Asterglen denies both authority and waiver.

Third defense — failure to mitigate. Defendants allege a staged reduction to twelve terminals was technically possible during a cure period.

Fourth defense — offset and avoidance of duplicate recovery. Any contract recovery must be reduced by service credits and cannot duplicate damages sought in Count II.

Fifth defense — justification. Meridian Silt alleges it performed contracted integration work in reliance on Copper Kestrel's representation that Asterglen allowed work to continue.

Defendants reserve defenses that become supported through discovery, subject to the governing rules and orders.

COUNTERCLAIM OF COPPER KESTREL LOGISTICS, LLC

1. Copper Kestrel repeats its admissions and allegations above.
2. The Pilot License was a valid contract between Asterglen and Copper Kestrel.
3. Section 9.2 required written notice describing a material breach and fifteen calendar days to cure before termination.
4. On July 22, 2024, Asterglen disabled the staging credential and declared immediate termination.
5. Asterglen did not give Copper Kestrel fifteen calendar days to return to twelve named terminals.
6. Copper Kestrel alleges it could have completed that reduction within three business days.
7. Asterglen's disablement prevented dispatch updates at the original twelve licensed terminals for four days.
8. Copper Kestrel incurred $90,000 in substitute-routing expense and claims $30,000 in service credits, for total alleged damages of $120,000.

Counterclaim Count I — breach of the Pilot License

9. Copper Kestrel repeats counterclaim paragraphs 1–8.
10. Copper Kestrel alleges Asterglen breached Section 9.2 by terminating and disabling service without written notice and fifteen calendar days to cure.
11. Copper Kestrel alleges the breach caused $120,000 in damages.
12. Copper Kestrel seeks judgment for $120,000, interest as allowed, taxable costs, and other available relief.

Counterclaim jury demand

Copper Kestrel demands a jury trial on all issues so triable.

Requested defense judgment

Defendants request judgment denying Asterglen relief, judgment for Copper Kestrel on its counterclaim, lawful costs and interest, and any further relief proved and legally available.

Relationship of claims

For clarity in this authored record, Defendants identify the following shared questions:

- what Asterglen's project manager said and was authorized to say on July 8;
- whether the forty-one identifiers reflected authorized temporary testing or production use;
- whether Section 9.2 applies before a demand for breach damages;
- whether a fifteen-day cure would have reduced use to twelve terminals;
- the extent to which the July 22 disablement caused claimed losses; and
- whether damages on Count I, Count II, and the counterclaim overlap or offset.

Defendants state these questions to preserve the record position later asserted in opposition to Rule 54(b) entry. Asterglen disputes that they prevent separate final judgment on Count I.

Responses concerning documents

Defendants admit for this exercise only that the following synthetic documents can be authenticated by stipulation, without conceding relevance or legal effect:

1. April 15, 2024 Pilot License;
2. June 3 proposed change order;
3. June 10 load-test email;
4. Meridian Silt project log;
5. July 18 audit export; and
6. July 22 termination email.

No audio recording of the July 8 call exists. The parties preserved conflicting participant recollections in declarations. No evidentiary hearing occurred on the Rule 54(b) motion.

Respectfully submitted on April 7, 2025.

COPPER KESTREL LOGISTICS, LLC and MERIDIAN SILT HOLDINGS, LLC

By fictional counsel for this synthetic exercise only:

/s/ Avery Example

Avery Example (fictional) Example Response Workshop 200 Training Avenue Richmond, Virginia 23219 synthetic-response (at) example.invalid

No person or firm named on this page is real or appearing in any court.

Certificate of service

This synthetic certificate states that on April 7, 2025, the authored answer and counterclaim were served on fictional counsel through the exercise's assumed electronic filing system. It is not evidence of real filing or service.

/s/ Avery Example

Required response to counterclaim

The metadata docket states that Asterglen answered the counterclaim on April 28, 2025. That routine pleading is not reproduced because no assertion in it adds to the finality question; the docket title and filing date remain available for completeness.

Exercise authenticity statement

This answer is deterministic UTF-8 authoring source. It is intended to render as eleven pages using the page-break markers and the constraints in `metadata/intended-pdfs.json`.

It is not signed, filed, served, docketed, or associated with a real party, attorney, judge, or court case. The `.invalid` contact domain is intentionally non-resolving.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

MEMORANDUM ORDER ON PARTIAL SUMMARY JUDGMENT

Copper Kestrel moves for summary judgment on Asterglen's contract claim, Count I. The motion is granted. This order does not resolve Count II against Meridian Silt or Copper Kestrel's counterclaim.

Undisputed record for this motion

The April 15, 2024 Pilot License permitted twelve named terminals. Section 9.2 required a party, before terminating for material breach or seeking breach damages, to provide written notice describing the breach and fifteen calendar days to cure. The parties agree Asterglen's July 22 email simultaneously announced termination and demanded $480,000; it allowed no cure period.

The parties dispute whether Asterglen's project manager orally allowed expanded testing on July 8. That dispute does not alter the present ruling because Section 9.2 applies even if the expanded deployment was otherwise a material breach.

Asterglen argues notice would have been futile because Copper Kestrel denied wrongdoing. The record instead shows Copper Kestrel said on July 22 that it could reduce active identifiers if Asterglen required it. No admissible evidence establishes refusal to cure before termination.

Analysis

Summary judgment is appropriate when no genuine dispute of material fact remains and the movant is entitled to judgment as a matter of law. The Court applies that standard only to Count I.

Section 9.2 uses mandatory language: before either party terminates for material breach "or seeks breach damages," it "must" give written notice and fifteen calendar days to cure. In the context of the agreement as a whole, notice and an opportunity to cure are conditions precedent to the contract remedy Asterglen seeks.

Asterglen's July 22 email described the asserted expanded deployment, but it made termination immediate and demanded damages immediately. It did not allow the promised cure period.

Asterglen relies on the July 8 discussion and July 18 audit. Neither was written notice that triggered a fifteen-day cure period. The discussion preceded the audit, and the audit was not sent to Copper Kestrel before July 22.

The Court rejects Asterglen's futility argument on this record. The agreement states no futility exception, and the cited communications do not show that notice and cure were impossible.

Because Asterglen did not satisfy the agreed condition precedent, Copper Kestrel is entitled to judgment on Count I. The Court does not decide whether the forty-one identifiers constituted production use, whether the July 8 statement effected a waiver, or whether the claimed amount is otherwise recoverable.

Remaining matters

Count II alleges Meridian Silt intentionally induced unauthorized expansion. It remains pending. Copper Kestrel's counterclaim alleges Asterglen violated the same notice-and-cure provision by disabling service. It also remains pending.

The parties identify overlap in witnesses, the July 8 discussion, deployment logs, the July 22 email, cure feasibility, causation, and damages or offset. Nothing in this merits order decides whether immediate entry under Rule 54(b) would be proper.

Order

For the reasons stated:

1. Copper Kestrel's motion for summary judgment on Count I is GRANTED.
2. Count I is DISMISSED WITH PREJUDICE as to Copper Kestrel.
3. Count II against Meridian Silt and Copper Kestrel's counterclaim remain for adjudication.
4. No judgment is directed at this time. Any request under Federal Rule of Civil Procedure 54(b) must be made separately and address claim finality, the relationship between resolved and unresolved matters, possible mootness, repeat review, setoff, and relevant equities.

Entered: January 12, 2026.

/s/ District Jurist Solace

DISTRICT JURIST SOLACE (fictional composite) United States District Court, exercise designation only

Exercise notice

This authored order is not a judicial decision. "District Jurist Solace" is a fictional composite label, not a real person. The order supplies a fully disposed Count I and expressly preserves Count II and a counterclaim so the later Rule 54(b) jurisdiction question is concrete.

The order itself does not direct judgment. The subsequent motion, response, short order, and separate partial judgment are distinct docket entries.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

PLAINTIFF'S MOTION FOR ENTRY OF PARTIAL FINAL JUDGMENT UNDER RULE 54(b)

Asterglen moves for entry of final judgment on Count I under Federal Rule of Civil Procedure 54(b). Count I was dismissed with prejudice, so nothing remains for the Court to adjudicate on that claim. Asterglen requests an express determination that there is no just reason for delay and a separate judgment.

The accompanying argument addresses the five considerations synthesized in *Braswell Shipyards, Inc. v. Beazer East, Inc.*, 2 F.3d 1331, 1335–36 (4th Cir. 1993), as restated in *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–74 (4th Cir. 2022).

I. Count I has been finally resolved

The January 12 order dismissed Count I with prejudice. Unlike a liability-only ruling with damages left open, the order denies Asterglen all relief on that claim. It is therefore an ultimate disposition of Count I, although other claims remain.

II. Asterglen contends there is no just reason for delay

First, Asterglen characterizes Count I as a contract notice question, while Count II concerns Meridian Silt's alleged interference. Asterglen acknowledges that the counterclaim invokes Section 9.2 but argues it concerns Asterglen's disablement rather than Copper Kestrel's expansion.

Second, Asterglen contends later proceedings will not moot review because Count I has been dismissed with prejudice.

Third, Asterglen argues the appellate court would not decide the identical issue twice because the Count I appeal would ask whether Section 9.2 barred Asterglen's damages demand, while the counterclaim asks whether disabling access breached Asterglen's service duties.

Fourth, Asterglen acknowledges Copper Kestrel seeks $120,000 on its counterclaim but contends a potential setoff does not bear on the legal basis for dismissal of Count I.

Fifth, Asterglen asserts economic hardship from postponing review because the dismissal removes a $480,000 claim while discovery and trial on other matters continue. It supplies no solvency evidence and does not quantify financing cost.

Asterglen recognizes that fragmented appeals are disfavored and that the parties remain contestants below. It nevertheless asks the Court to find this case exceptional because the Count I dismissal is complete and turns on contract construction.

III. Requested findings

Asterglen asks the Court to find expressly that Count I is final, that there is no just reason for delay, that later events will not moot review, that repeat review is unlikely, that the counterclaim will not create a meaningful setoff concern, and that immediate review will reduce uncertainty.

Relief requested

Asterglen requests an order containing the findings stated above and directing the clerk to enter a separate partial judgment on Count I.

Respectfully submitted: January 20, 2026.

ASTERGLEN FREIGHT SOFTWARE, INC.

By fictional counsel:

/s/ Morgan Example

Morgan Example (fictional) synthetic-counsel (at) example.invalid

Certificate of service

The exercise states that this motion was electronically served on all synthetic counsel on January 20, 2026. No real filing or service occurred.

Proposed order warning

The motion specifically requests the words "there is no just reason for delay" and case-specific findings. The later court order does not adopt either. This distinction is intentional: a user's decision engine must inspect the entered order, not infer findings from a party's proposed language or from the fact that the motion was granted.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

DEFENDANTS' OPPOSITION TO RULE 54(b) MOTION

Defendants oppose immediate entry. Although Count I was dismissed with prejudice, Asterglen has not shown the exceptional circumstances needed to fragment this two-sided contract dispute.

Rule 54(b) requires both a final disposition of an individual claim and an express determination that there is no just reason for delay. *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–74 (4th Cir. 2022). The inquiry begins tilted against fragmentation and requires a case-specific assessment.

I. Resolved and unresolved matters overlap

Count I, Count II, and the counterclaim arise from the same Pilot License, expansion, July 8 discussion, audit, July 22 disablement, and alleged opportunity to cure. The same witnesses and documents bear on authorization, breach, causation, and damages.

The January 12 order reserved whether expansion was production use, whether Asterglen waived the signed-writing requirement, and whether damages were otherwise recoverable. Those questions remain relevant to Count II and the counterclaim.

II. Later proceedings could narrow or moot practical review

If Meridian Silt prevails because the expansion was authorized, or if Copper Kestrel prevails on its counterclaim because Asterglen wrongfully disabled service, the factual and remedial posture of Count I will materially change. Settlement or trial could eliminate the need for piecemeal review.

III. Repeat appellate review is likely

An immediate appeal would require review of Section 9.2, the July 22 email, and the summary-judgment record. A later appeal from the counterclaim could require review of the same provision, communication, and cure evidence. Different legal labels do not eliminate the duplicated record.

IV. The counterclaim presents a possible setoff

Copper Kestrel seeks $120,000 arising from the same termination and disablement. If Asterglen eventually restores Count I, the counterclaim could offset part of the claimed judgment. That is the setoff concern identified in the Rule 54(b) factors.

V. No hardship supports immediate review

Asterglen offers no evidence of insolvency, irreparable economic injury, witness loss, or unusual delay. Ordinary litigation expense and uncertainty do not distinguish this action from other multi-claim contract cases. The parties remain active opponents below, which weighs against certification.

VI. Any order must be explicit and reasoned

If the Court nevertheless grants the motion, Defendants ask it to make the exact express determination required by Rule 54(b) and to state case-specific findings. A bare grant of the motion cannot substitute for the Court's own express determination. See *Kinsale*, 31 F.4th at 874–76.

Defendants make this request to preserve the distinction between a party's contention and an entered judicial finding. They do not consent to certification.

Conclusion

The Court should deny the motion. Alternatively, it should state its claim-finality conclusion, its express no-just-reason determination, and its reasoning on claim relationship, mootness, repeat review, setoff, and equities.

Respectfully submitted: January 30, 2026.

COPPER KESTREL LOGISTICS, LLC and MERIDIAN SILT HOLDINGS, LLC

By fictional counsel:

/s/ Avery Example

Avery Example (fictional) synthetic-response (at) example.invalid

Certificate of service

The exercise states that this opposition was electronically served on all synthetic counsel on January 30, 2026. No real filing or service occurred.

Exercise issue preservation

The opposition expressly raises each *Braswell/Kinsale* consideration and warns that granting the motion is not the express determination required by the rule. The later notice, briefs, and opinion cite this page range to show preservation. Nothing here purports to control the Court's order.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

ORDER

Plaintiff's Motion for Entry of Partial Final Judgment Under Federal Rule of Civil Procedure 54(b) (ECF No. 57) is GRANTED. The Clerk is DIRECTED to enter judgment in favor of Copper Kestrel Logistics, LLC and against Asterglen Freight Software, Inc. on Count I.

Entered: February 4, 2026.

/s/ District Jurist Solace

DISTRICT JURIST SOLACE (fictional composite)

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

PARTIAL JUDGMENT

Judgment is entered in favor of Copper Kestrel Logistics, LLC and against Asterglen Freight Software, Inc. on Count I of the Complaint.

This separate document does not adjudicate Count II or Copper Kestrel's counterclaim.

Entered on the civil docket: February 4, 2026.

CLERK, exercise designation only

This is a one-page synthetic judgment, not a real court record.

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v. Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

NOTICE OF APPEAL

Notice is given that Plaintiff Asterglen Freight Software, Inc. appeals to the United States Court of Appeals for the Fourth Circuit from the Partial Judgment entered February 4, 2026 (ECF No. 60), the February 4, 2026 Order directing that judgment (ECF No. 59), and the January 12, 2026 Memorandum Order dismissing Count I with prejudice (ECF No. 55).

Filed with the synthetic district clerk: March 3, 2026.

ASTERGLEN FREIGHT SOFTWARE, INC.

By fictional counsel:

/s/ Morgan Example

Morgan Example (fictional) synthetic-counsel (at) example.invalid

Certificate of service

The exercise states that the notice was electronically served on all synthetic counsel on March 3, 2026. It names the only appellant, the designated judgment/orders, and the Fourth Circuit.

Timing note outside the filing: February 4 is excluded; thirty calendar days ends March 6, 2026. The March 3 notice is therefore within the ordinary private-party period. Timeliness does not cure the Rule 54(b) finality defect.

SYNTHETIC TRAINING RECORD — NOT FILED — CERTIFIED-DOCKET SIMULATION

UNITED STATES DISTRICT COURT — EASTERN DISTRICT OF VIRGINIA Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC, et al. Civil Action No. SYN-25-0117

CERTIFIED DOCKET ENTRIES — PAGE 1 OF 4

No.	Date	Entry
1	2025-03-03	Complaint and jury demand filed by Asterglen.
2	2025-03-04	Synthetic summonses issued.
5	2025-03-12	Synthetic service returns filed.
8	2025-04-07	Defendants' answer, defenses, and Copper Kestrel counterclaim.
10	2025-04-28	Asterglen answer to counterclaim.
17	2025-06-02	Rule 16 scheduling order.
31	2025-10-15	Discovery completion notice.

All entries are fictional. "Certified" describes the document's function in the exercise, not an act by a real clerk.

No.	Date	Entry
42	2025-11-03	Copper Kestrel motion for summary judgment on Count I.
43	2025-11-03	Memorandum and synthetic exhibits supporting ECF No. 42.
49	2025-11-24	Asterglen opposition to ECF No. 42.
52	2025-12-05	Copper Kestrel reply supporting ECF No. 42.
55	2026-01-12	Memorandum Order granting ECF No. 42; Count I dismissed with prejudice; Count II and counterclaim remain; no judgment directed.
57	2026-01-20	Asterglen motion for partial final judgment under Rule 54(b).
58	2026-01-30	Defendants' opposition to ECF No. 57.

No.	Date	Entry
59	2026-02-04	Order granting ECF No. 57 and directing entry of judgment on Count I.
60	2026-02-04	Separate Partial Judgment in favor of Copper Kestrel and against Asterglen on Count I.
61	2026-03-03	Asterglen notice of appeal to Fourth Circuit from ECF Nos. 55, 59, and 60.
62	2026-03-03	Notice transmitted to other parties; appellate filing and docketing fees marked paid for exercise.
63	2026-03-04	Notice and initial docket entries transmitted to Fourth Circuit exercise docket.
64	2026-03-16	Asterglen transcript-order certification: no transcript will be ordered.

No Rule 50(b), 52(b), 59, or 60 motion was filed. No motion under FRAP 4(a)(5) or 4(a)(6) was filed. These negative facts prevent an unintended tolling or extension branch.

No.	Date	Entry
65	2026-03-20	Record marked complete; no hearing transcript exists or is ordered.

The district court did not stay Count II or the counterclaim. Those matters remained pending on the March 20, 2026 certification date. Later appellate events are intentionally excluded from this appendix record and appear only in `metadata/dockets.json`.

Exercise clerk attestation dated March 20, 2026: the listed entries through ECF No. 65 correspond to `metadata/dockets.json`. No real certification occurred.